

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-028
Amendments to Titles 5 and 17 of the Chickasaw Nation Code
(Dangerous Weapons and Firearms)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for dangerous weapons and firearms, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5, Chapter 15, Section 5-1506.7 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 5-1506.7 **WEAPONS OFFENSE.**

A. It shall be unlawful to:

1. have a Dangerous Weapon in one's ~~actual possession~~ **actual and physical control** while being addicted to any narcotic drug; or after having been declared mentally incompetent; or while being intoxicated or otherwise under the influence of alcoholic beverages or other intoxicating substance, drug, or medicine; or while possessing the intent to unlawfully assault another; or while under the age of eighteen (18) years of age, and without the consent of his parent or guardian; or

2. ~~carry a loaded Shotgun or Rifle in a vehicle on a public road without lawful authority to do so~~ **transport a loaded rifle or shotgun in a landborne motor vehicle over a public highway or roadway unless the rifle or shotgun is transported clip- or magazine-loaded, not chamber-loaded, and in an exterior locked compartment of the vehicle or trunk of the vehicle or in the interior compartment of the vehicle; or**

3. discharge any kind of Firearm from a motor vehicle without lawful authority to do so; or to discharge a Firearm from, upon, or across any public highway without lawful authority to do so; **or**

4.3. ~~carry a Firearm concealed or unconcealed on the person. This does not prohibit the lawful use of Firearms for hunting, fishing, educational or recreational purposes, security or law enforcement activities, or as otherwise authorized by Chickasaw law.~~ carry or possess a Dangerous Weapon in any establishment where low-point beer or alcoholic beverages are consumed. This provision does not apply to Law Enforcement Officers, or to private investigators with a firearms authorization when acting in the scope and course of employment and shall not apply to an owner or proprietor of the establishment having a pistol, rifle, or shotgun on the premises. Provided however, a person possessing a valid handgun license pursuant to the provision of the Oklahoma Self-Defense Act may carry the concealed or unconcealed handgun into any restaurant or other establishment licensed to dispense low-point beer or alcoholic beverages where the sale of low-point beer or alcoholic beverages does not constitute the primary purpose of the business.

Provided further, nothing in this section shall be interpreted to authorize any Law Enforcement Officer in actual physical possession of a Dangerous Weapon to consume low-point beer or alcoholic beverages, except in the authorized line of duty as an undercover officer.

Nothing in this section shall be interpreted to authorize any private investigator with a firearms authorization in actual physical possession of a Dangerous Weapon to consume low-point beer or alcoholic beverages in any establishment where low-point beer or alcoholic beverages are consumed; or

5. have a Firearm in one's actual and physical control while committing or attempting to commit any criminal offense under the Chickasaw Nation Code punishable by imprisonment for a term exceeding one year; or

6. have a Dangerous Weapon in one's actual and physical control in any structure, building, or office space which is owned or leased by a city, town, county, state, tribal, or federal governmental authority for the purpose of conducting business with the public; or

7. have a Dangerous Weapon in one's actual and physical control in any courthouse, courtroom, prison, jail, detention facility, or any facility used to process, hold, or house arrested persons, prisoners or persons alleged delinquent or adjudicated delinquent; or

8. have a Dangerous Weapon in one's actual and physical control in any place where gambling is authorized; or

9. carry a Firearm into any premises upon which the property owner, tenant, employer, place of worship, or business entity prohibits the possession of weapons on the property controlled by the person or business entity and has posted signs clearly stating such prohibition.

B. Definitions

For purposes of this section:

1. "Dangerous Weapon" means any item, including a Firearm, that in the manner of its use or intended use is capable of causing death or serious bodily injury. In determining whether an item, object or thing not commonly known as a Dangerous Weapon is a Dangerous Weapon, the character of the instrument, object or thing the character of the wound produced, if any, and the manner in which the instrument, item or thing was used shall be determinative.

2. "Firearm" means any weapon (including a starter gun) which will or is designed to or may readily be converted to expel a projectile by the action of an explosive; the frame or receiver of any such weapon; any firearm muffler or firearm silencer; or any destructive device. "Firearm" does not include an antique firearm.

3. "Possession" shall mean to have in one's actual and physical control, care and management, or to have dominion or control over the property though not in one's physical possession.

C. Weapons Offense shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, immediate removal or banishment from Chickasaw Nation property, or any combination of these listed punishments.

D. Nothing in this Section shall prohibit the lawful use of Firearms or Dangerous Weapons for hunting, fishing, educational or recreational purposes, or as otherwise authorized by Chickasaw law.

E. Nothing in this Section shall prohibit the lawful use of Firearms or Dangerous Weapons by any law enforcement officer, peace officer, or security officer in the performance of their duties.

F. A law enforcement officer shall seize any and all Firearms and/or Dangerous Weapons in the person's Possession if the law enforcement officer has probable cause to believe that a person has violated this Section. Any property taken or detained under this Section shall not be repleviable or alienable, but shall be deemed to be in the custody of the office of the prosecutor, subject only to the orders and decrees of the Court.

1. Any property seized according to this Section shall be released upon:

a. Failure to file criminal charges within ninety (90) days from the date of seizure, provided the property is held as evidence and not forfeited to the Chickasaw Nation or returned to an owner or party in interest. Provided, however, the prosecutor may request the Court to grant an extension beyond the ninety-day limitation for filing charges if a criminal investigation may result in charges being

filed after that time. If an extension to file criminal charges is granted, the seized property may be held until the Court orders the property released; or

b. Dismissal or acquittal of criminal charges, provided the property is held as evidence and not forfeited to the Chickasaw Nation, returned to an owner or party in interest.

2. If the property no longer has evidentiary value in a Chickasaw Nation case or investigation, the property shall be delivered upon request to any other jurisdiction in which the property may be of evidentiary value in a case or investigation, in which case, the Chickasaw Nation shall no longer maintain any right, title or interest in the property.

3. Upon conviction under this Section, the property shall be destroyed or returned to its rightful owner (if the property was stolen, used without permission, or a third party has an interest in the property), provided that the property no longer has evidentiary value in the Chickasaw Nation or no other jurisdiction has requested the property.

BE IT FURTHER RESOLVED, that Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 17, Chapter 4, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 17-401.2

DANGEROUS WEAPONS ON SCHOOL PROPERTY.

A. It shall be unlawful to have a Dangerous Weapon in one's Possession on any School Property or while on any school bus, except:

1. a Dangerous Weapon designed for hunting or fishing purposes kept in a privately owned vehicle and properly displayed or stored as required by law, provided such vehicle containing said Dangerous Weapon is driven onto School Property only to transport a student to and from school and such vehicle does not remain unattended on School Property;

2. a Dangerous Weapon used for the purposes of participating in the Oklahoma Department of Wildlife Conservation certified hunter training education course or any other hunting, fishing, safety or firearms training courses, or a recognized firearms sports event, team shooting program or competition, or living history reenactment, provided the course or event is approved by the principal or chief administrator of the school where the course or event is offered, and provided the weapon is properly displayed or stored as required by law pending participation in the course, event, program or competition;

3. a Dangerous Weapons in the possession of any peace officer or other person authorized by law to possess a weapon in the performance of his or her duties and responsibilities;

4. by an individual who is licensed pursuant to the Oklahoma Self-Defense Act, provided, however, that there are no school policies to the contrary;

5. a gun, knife, bayonet or other Dangerous Weapon in the possession of a member of a veterans group, the National Guard, active military, the Reserve Officers' Training Corps (ROTC) or Junior ROTC, in order to participate in a ceremony, assembly, or educational program approved by the chief administrator of a school or school district where the ceremony, assembly, or educational program is being held; provided, however, the gun or other weapon that uses projectiles is not loaded and is inoperable at all times while on School Property;

6. a handgun carried in a motor vehicle pursuant to a valid handgun license authorized by the Oklahoma Self-Defense Act onto School Property set aside for the use or parking of any vehicle; provided, however, said handgun shall be stored and hidden from view in a locked motor vehicle when the motor vehicle is left unattended on School Property, provided, however, that there are no school policies to the contrary; and

7. a handgun carried onto School Property by school personnel who have been designated by the board of education, provided such personnel either possess a valid armed security guard license or holds a valid reserve peace officer certification;

B. For purposes of this section:

1. "School Property" means any Chickasaw Nation educational facility, including without limitation any Head Start property and any childcare property; any publicly owned property held for purposes of elementary, secondary, or vocational-technical education; and shall not include property owned by public school districts or where such property is leased or rented to an individual or corporation and used for purposes other than educational;

2. All capitalized terms not otherwise defined in this Section shall have the meanings ascribed to them as set forth in Title 5, Section 5-1506.7.

C. Dangerous Weapons on School Property shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

D. A law enforcement officer shall seize any and all Firearms or Dangerous Weapons in the person's possession if the law enforcement officer has probable cause to believe that a person has violated this Section and the seizure of the property shall be governed according to Title 5, Section 5-1506.7(F).

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on June 18, 2021, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUN 18 2021

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(Dangerous Weapons and Firearms)

Explanation:

This resolution amends one section in Title 5 to expand the weapons offense. A new criminal offense of possession of a dangerous weapon on school property was added to Title 17.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature